

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Cassandra Fenkel	Team: Squad #11	CCRB Case #: 201604066	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 04/19/2016 4:45 PM	Location of Incident: § 87(2)(b) [REDACTED]	18 Mo. SOL 10/19/2017	Precinct: 84		
Date/Time CV Reported Sat, 05/07/2016 1:30 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 05/12/2016 10:58 AM		

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. SGT Stephen Volpe	4757	939667	084 PCT
2. POM Thomas Murray	14413	946047	084 PCT
3. POM David Uriguen	05793	948151	084 PCT
4. POM John Uske	02554	939622	084 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Maged Ibrahim	27154	950610	084 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Stephen Volpe	Force: On April 19, 2016, Sergeant Stephen Volpe fired his gun at § 87(2)(b) [REDACTED]	A . Unsubstantiated
B . POM Thomas Murray	Force: On April 19, 2016, Police Officer Thomas Murray fired his gun at § 87(2)(b) [REDACTED]	B . Unsubstantiated
C . POM David Uriguen	Force: On April 19, 2016, Police Officer David Uriguen fired his gun at § 87(2)(b) [REDACTED]	C . Unsubstantiated
D . POM John Uske	Abuse: On May 5, 2016, Police Officer John Uske entered and searched § 87(2)(b) [REDACTED] in Brooklyn.	D . Exonerated

Case Summary

§ 87(2)(g)

On May 7, 2016, § 87(2)(b) contacted the IAB Command Center and filed the following complaint on behalf of her son, § 87(2)(b). The complaint was received at the CCRB on May 12, 2016.

On April 19, 2016, at approximately 4:45 p.m., Sgt. Stephen Volpe and PO Thomas Murray of the 84th Precinct, both identified via the investigation, observed § 87(2)(b) who was known to the 84th Precinct and was wanted on an outstanding warrant, in front of § 87(2)(b) in Brooklyn. Sgt. Volpe requested that PO Maged Ibrahim and PO Uriguen, both from the 84th Precinct and identified by the investigation, respond to the scene to assist with arresting § 87(2)(b).

PO Uriguen and PO Ibrahim approached § 87(2)(b) from one direction, and Sgt. Volpe and PO Murray approached him from the opposite direction. At this time, § 87(2)(b) was exiting § 87(2)(b) and said “hello” to § 87(2)(b) and other individuals in the area. Sgt. Volpe, PO Uriguen, and PO Murray fired their guns at § 87(2)(b) (**Allegation A, Allegation B, Allegation C**), who was shot once in his left wrist. § 87(2)(b) fled on foot for approximately two blocks as Sgt. Volpe, PO Murray, PO Ibrahim, and PO Uriguen pursued him. § 87(2)(b) entered § 87(2)(b), where he was later arrested for § 87(2)(b).

No firearm was recovered that day.

On May 5, 2016, at approximately 6:00 a.m., pursuant to the above described incident, PO John Uske and additional officers from the 84th Precinct entered and searched § 87(2)(b) (**Allegation D**). That day, § 87(2)(b) was issued a summons for § 87(2)(b). No firearm was recovered pursuant to the search.

The CCRB obtained video surveillance footage of § 87(2)(b) entering § 87(2)(b) from § 87(2)(b) YouTube page. The original footage is located in IA #6 in the digital case file (Board Review 06) and summarized in IA #213 (Board Review 07). A SnagIt copy of the video has been placed below.



201604066_20160720_1804_DM.mp4

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b)

An investigation into this incident by the NYPD’s Force Investigation Division is currently pending.

Mediation, Civil and Criminal Histories

- This complaint was not suitable for mediation.

- On § 87(2)(b), § 87(2)(b) filed a Notice of Claim with the City of New York (Board Review 09), claiming serious physical and psychological injuries, as well as damage to future earnings and reputation as a result of this incident. He is seeking \$20,000,000 in damages. § 87(2)(b)'s 50-H hearing has been scheduled for § 87(2)(a) § 87(2)(b) (Board Review 10).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint involving § 87(2)(b) and § 87(2)(b) (Board Review 12).
- Sgt. Volpe has been a member-of-the-service for 11 years and has one prior CCRB complaint involving five allegations, none of which were substantiated § 87(2)(g) [REDACTED]
- PO Murray has been a member-of-the-service for eight years and has two prior CCRB complaints involving three allegations, none of which were substantiated § 87(2)(g) [REDACTED]
- PO Uriguen has been a member-of-the-service for seven years and has four prior CCRB complaints involving six allegations, none of which were substantiated § 87(2)(g) [REDACTED]
- PO Uske has been a member-of-the-service for 11 years and has five prior CCRB complaints involving six allegations, none of which have been substantiated § 87(2)(g) [REDACTED]

Potential Issues

In phone statements to the CCRB, § 87(2)(b) (identified as a 911 caller in Event documents (Board Review 13)), and § 87(2)(b) (identified by § 87(2)(b) as one of the individuals in the area at the time of the shooting) each stated that they heard gunshots, but did not see the circumstances leading up to the shooting (Board Review 14, Board Review 15, Board Review 16).

Canvasses of § 87(2)(b) and § 87(2)(b), conducted on June 3, 2016, failed to identify any viable witnesses to the April 19, 2016 incident (Board Review 17). Though many residents heard the sound of gunshots, no one with whom the CCRB spoke with saw the shooting or the events leading up to it first-hand, with the exception of § 87(2)(b) § 87(2)(b) who refused to provide a statement that day. § 87(2)(b)

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Findings and Recommendations

Explanation of Subject Officer Identification

PO Uske obtained the search warrant and the Pre-Execution Plan confirmed PO Uske's presence during the execution of the search warrant (Board Review 19). § 87(2)(g)

Allegations not pleaded

- § 87(2)(g)
- § 87(2)(g)

Allegation A – Force: On April 19, 2016, Sergeant Stephen Volpe fired his gun at § 87(2)(b)

Allegation B – Force: On April 19, 2016, Police Officer Thomas Murray fired his gun at

§ 87(2)(b)

Allegation C – Force: On April 19, 2016, Police Officer David Uriguen fired his gun at

§ 87(2)(b)

It is undisputed that Sgt. Volpe, PO Murray, and PO Uriguen fired their guns at § 87(2)(b). § 87(2)(g) (Board Review 21, Board Review 22) testified that he exited his apartment building and was walking to a local corner store while speaking on a black and silver iPhone 5, which was not enclosed in a case. § 87(2)(b) said hello to an unidentified woman and to § 87(2)(b) and he then saw two individuals quickly walking towards him with guns visible in their hands. Because they were dressed in plainclothes, § 87(2)(b) did not realize that the individuals were police officers. Fearing for his life, § 87(2)(b) placed his cell phone in his front sweatshirt pocket, near his waistband, and ran. He said that at this point, the officers began shooting at him. § 87(2)(b) was shot once in his left wrist after running approximately two steps. As he ran approximately two blocks, § 87(2)(b) removed his cell phone from his pocket and entered § 87(2)(b), another apartment building. Approximately 15 minutes later, he was apprehended from that location. § 87(2)(b) denied possession a gun during this incident.

Sgt. Volpe (Board Review 23), PO Murray (Board Review 24), PO Uriguen (Board Review 25), and PO Ibrahim (Board Review 26) all consistently testified that as they approached § 87(2)(b) § 87(2)(b) drew a black handgun from the front center of his waistband and pointed it at PO Uriguen and PO Ibrahim. Neither Sgt. Volpe, PO Murray, PO Uriguen nor PO Ibrahim knew whether § 87(2)(b) fired his gun. Fearing for their own safety and the safety of their fellow officers, Sgt. Volpe, PO Murray, and PO Uriguen each acknowledged drawing and firing their guns at § 87(2)(b). Sgt. Volpe said he fired eight times, PO Murray could not recall

how many shots he fired, and PO Uriguen said he fired seven times. Though PO Ibrahim drew and pointed his gun, he did not fire because PO Uriguen was standing in front of him, and he did not have a clear shot. None of the officers acknowledged observing § 87(2)(b) on a cell phone at any point during this encounter.

§ 87(2)(a) PHL § 18(6)

§ 87(2)(b) The video surveillance footage of the entrance to § 87(2)(b) depicts § 87(2)(b) entering the building with a small dark object in his hand. However, due to the grainy nature of the video footage, it remains unclear whether the object is a gun, an iPhone, or something else. No gun was ever recovered pursuant to this incident, no civilian witnesses saw the object in question in § 87(2)(b)'s hand. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) It is therefore recommended that **Allegations A through C** be closed as **unsubstantiated**.

Allegation D – Abuse of Authority: On May 5, 2016, Police Officer John Uske entered and searched § 87(2)(b) in Brooklyn.

It is undisputed that officers entered and searched § 87(2)(b). Article 690.50 of the Criminal Procedure Law permits officers who have obtained a valid judge-issued search warrant to enter and search the location (Board Review 28). Search warrant § 87(2)(b), issued by Criminal Court Judge § 87(2)(b) on § 87(2)(b), authorized officers to enter § 87(2)(b) and search the location for a firearm, ammunition, documents relating to the ownership and recent occupation of the location, safes, locked containers, any computer hardware, computer software, and cellular phones (Board Review 29). § 87(2)(g)

§ 87(2)(b) it is recommended that **Allegation D** be closed as **exonerated**.

Squad: #11

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date